A Power of Attorney Sale, an Unregistered Partition, and Three Brothers Who Never Signed

We investigated a 12-cent plot in Thiruparankundram, Madurai. The current owner is real -but the chain that brought the land to him has a weak link that could break in court.

67
OUT OF 100

Proceed Only After 3 Conditions Are Met

Moderate risk (50-69: Conditional - resolve before proceeding). Owner is verified in EC. But the ownership chain passes through a GPA sale that is legally vulnerable, and the original family partition was never formally registered.

Meenakshi Sundaram bought this land in 2021 for Rs. 42 lakhs. He has a registered sale deed, the Patta is in his name, and his name appears in the EC. On the surface, everything checks out.

But trace the chain backwards and the picture changes. In 2003, the land was sold not by the owner himself, but by a broker named Selvam who held a General Power of Attorney. The Supreme Court in *Suraj Lamp & Industries v. State of Haryana*, (2012) 1 SCC 656, confirmed that GPA-based sales have never constituted valid conveyances of title - this was a restatement of existing law, not new legislation. But the weakness runs deeper: even if the GPA were valid, Balasubramanian's own title derives from an unregistered family partition. The GPA is void on two independent grounds - the instrument itself, and the grantor's uncertain title.

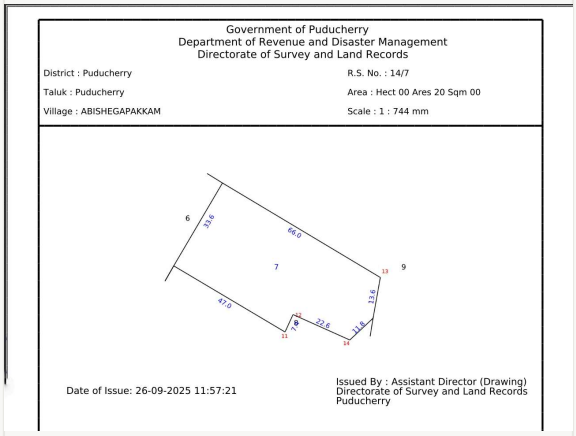
Go further back, and there's another problem. In 1985, when the original owner Ramasamy Naicker died, his four sons divided the land among themselves. But they did it through a family arrangement letter - none of the four brothers ever executed a registered partition deed. The division is assumed, not documented.

Add a bank release deed that names the wrong survey number, and you have a title that *looks* clean but has three structural cracks underneath. Each one is fixable. None should be ignored.

This is the story of Survey 287/2B.

SURVEY NO.	PATTA OWNER	LOCATION	EXTENT	EC RECORDS
287/2B	Meenakshi Sundaram K.	Thiruparankundram, Madurai	12 cents	12 (48 years)

FMB SKETCH -SURVEY 287/2B



PATTA NO. 4216	SURVEY 287/2B
VILLAGE Thiruparankundram	DISTRICT Madurai
OWNER (PATTA) Meenakshi Sundaram K.	FATHER Kandasamy
LAND TYPE Nanjai, Ryotwari	EXTENT 12 cents (0.048 Ha)
FMB DIMENSIONS ~22 × 20 m (~485 sq.m)	EC RECORDS 12 (1978–2024)

EC VERIFICATION

Owner **Meenakshi Sundaram K.** found in EC record #10 (Sale Deed 2890/2021). Chain traceable through 6 owners back to 1978. However, the chain includes a GPA-based sale (2003) and relies on an unregistered family partition (1985). Two mortgages found, both released.

KEY TERMS

EC - Transaction history from Registration Dept.
Patta - Current ownership record from Revenue Dept.
FMB - Government surveyor's boundary sketch.
GPA - Power of Attorney to act on owner's behalf.

Chapter One: How the Land Changed Hands

1978

Ramasamy Naicker buys 40 cents

Doc #1842/1978 · Sale · Agricultural land

The original purchase. Full 40-cent parcel from government land pool.

1985

Ramasamy dies. 4 sons divide land - unregistered

Family arrangement letter · NOT registered as a deed

Balasubramanian gets the SW portion (~12c). But this partition was **never registered**. Only a family letter exists. None of the 4 brothers executed a registered partition deed.

2003

GPA sale -broker Selvam sells to Krishnamoorthy

Doc #441/2002 (GPA) + #892/2003 (Sale) · Rs. 3,80,000

Balasubramanian gave a GPA to broker Selvam, who sold the land. Per *Suraj Lamp v. State of Haryana*, (2012) 1 SCC 656, **GPA sales have never constituted valid conveyances**. Double weakness: Balasubramanian's own title rests on an unregistered partition.

2016

Krishnamoorthy settles to daughter Priya

Doc #3341/2016 · Settlement deed

Registered settlement. Valid in form. Risk inherited from 2003 GPA chain.

2019

Priya sells to Arjun for Rs. 28,00,000

Doc #1567/2019 · Registered sale deed

Clean sale. Consideration exceeds guideline value per stamp duty basis on the registered document.

2021

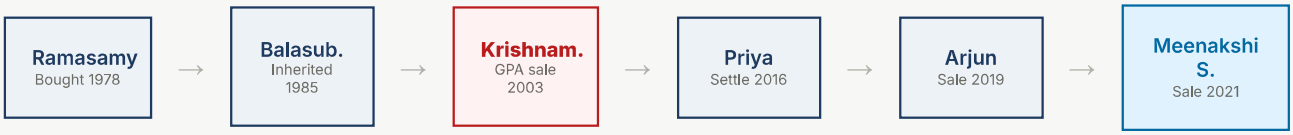
Arjun sells to Meenakshi Sundaram for Rs. 42,00,000

Doc #2890/2021 · Registered sale deed

Current owner. Patta transferred. Name appears in EC.

The Ownership Chain

The current owner is verified. But one link in the chain -the 2003 GPA sale -is legally vulnerable. Everything after it depends on that link holding.



"The chain looks complete -but one link was forged with a GPA, not a registered sale deed. That link may not survive a legal challenge."

THE WEAK LINK

The 2003 GPA sale is not a valid conveyance

Balasubramanian never sold the land himself. He gave a General Power of Attorney to broker Selvam, who sold it. Per *Suraj Lamp & Industries v. State of Haryana*, (2012) 1 SCC 656, GPA-based sales have never constituted valid conveyances - this was a restatement of existing law, not new legislation. Further, Balasubramanian's own title derives from an unregistered family partition, making his authority to grant the GPA itself questionable. The 2003 link is void on two independent grounds. A fresh registered deed from Balasubramanian (or his legal heirs) would cure both defects.

THE MISSING DEED

The 1985 partition was never registered

When Ramasamy died, his 4 sons divided the land through a family arrangement letter. Only Balasubramanian's portion (287/2B) shows up in EC. The other 3 brothers -Murugan, Kathiresan, Velmurugan - never signed a registered partition deed. Their consent is assumed, not documented.

Where are the three brothers?

Ramasamy's four sons: **(1) Balasubramanian** (SW, this plot), **(2) Murugan**, **(3) Kathiresan**, **(4) Velmurugan**. Only Balasubramanian appears in EC. The other three have no registered deed, no legal heir certificate, no relinquishment. Their status is unknown. Without a registered partition, any of them or their heirs could challenge. The exposure cannot be quantified from available records alone.

CLERICAL ERROR

Indian Bank's release deed names the wrong survey

The 1997 release deed (Doc #887/1997) says "Survey 287/2" instead of "287/2B". Indian Bank must issue a rectification deed. This loan closed 29 years ago - expect archived records, legacy systems, and the bank's legal department to be involved.

WHAT'S CLEAN

Everything from 2016 onwards is solid

Settlement to Priya (2016), sale to Arjun (2019), sale to Meenakshi Sundaram (2021) - all registered at market value. HDFC mortgage (2008) released 2013. Problems are inherited from the 1985 and 2003 layers only.

3 Conditions Must Be Met

The title is workable but has structural issues. All three can be fixed with the right documents.

1 Get a fresh registered sale deed to replace the GPA link

Balasubramanian (or his legal heirs) must execute a registered sale deed directly to someone in the current chain. The 2003 GPA-based sale has never constituted a valid conveyance per *Suraj Lamp v. State of Haryana*, (2012) 1 SCC 656. Additionally, the grantor's own title rests on an unregistered partition. Until this link is replaced with a proper deed, the entire chain from 2003 onwards rests on shaky legal ground.

2 Register the 1985 partition with all 4 brothers' signatures

The family arrangement that divided Ramasamy's 40 cents among his 4 sons was never registered. All four -Balasubramanian, Murugan, Kathiresan, and Velmurugan (or their legal heirs) -must sign a registered partition deed confirming each one's share. This removes any ambiguity about the other three brothers' claims to 287/2B.

3 Fix Bank Error

Indian Bank release says "287/2" not "287/2B"

The 1997 release deed (Doc #887/1997) names the survey as "287/2" instead of "287/2B". This is a clerical error. Get Indian Bank to execute a rectification deed correcting the survey number. Note: this loan was closed 29 years ago - archived files may require the bank's legal department and internal approvals. Allow time for this process.

✓ What's Clean

Post-2016 chain is structurally clean

Everything from 2016 onwards is structurally clean. Settlement (2016), sale to Arjun (2019), sale to Meenakshi (2021) are all properly registered. HDFC mortgage (2008) cleanly released (2013). The problems sit exclusively in the 1985 and 2003 layers.

Score Breakdown -67/100

0-49 Don't Buy · 50-69 Conditional · 70-84 Proceed · 85+ Clear

Owner in EC	20/20
Chain of Title	10/20
No Active Liens	15/15
Area Consistency	15/15
No Missing Heirs	0/10
No Suspicious Txns	7/10
Doc Completeness *	0/10

Missing Heirs (0/10): Murugan, Kathiresan, Velmurugan - no registered partition, no relinquishment, no legal heir certificates on record. Status unknown.
Suspicious Txns (7/10): 2003 GPA sale consideration of Rs. 3,80,000 is significantly below market for the period. Transaction via broker GPA raises beneficial interest questions. Post-2008 transactions are at or above guideline value.
* **Doc Completeness (0/10):** (a) 1985 partition exists only as an unregistered family letter, not a legal instrument. (b) EC last updated 2024; report standard requires EC within 180 days of transaction date.

Key Dates & Values

Original Purchase	1978
Family Partition (unregistered)	1985
GPA Sale (weak link)	2003
Current Owner Since	2021
Purchase Price	Rs. 42,00,000
Guideline Value (approx.)	Rs. 38,00,000
Market Trend	Appreciating

Verdict

Proceed Only After 3 Conditions Are Met

Meenakshi Sundaram K. is the verified owner with a registered sale deed (2021) and Patta in his name. However, the chain relies on a GPA sale (2003) that may not survive legal challenge, and the original 1985 partition was never formally registered. A bank release deed contains a survey number error. Until a fresh sale deed replaces the GPA link, all 4 brothers sign a registered partition, and the bank error is corrected, this title carries moderate risk. Share this report with your lawyer.

Appendix: All 12 EC Records

#	DOC NO.	TYPE	FROM	TO	EXTENT	SURVEY	RISK
1	1842/78	Sale	Govt. land pool	Ramasamy Naicker	40c	287/2	–
2	1204/94	Mortgage	Balasubramanian	Indian Bank	12c	287/2B	–
3	887/97	Release	Indian Bank	Balasubramanian	12c	287/2 (!)	ADVISORY
4	441/02	GPA	Balasubramanian	Selvam (broker)	12c	287/2B	HIGH
5	892/03	Sale (GPA)	Selvam (as GPA)	Krishnamoorthy	12c	287/2B	HIGH
6	2567/08	Mortgage	Krishnamoorthy	HDFC Bank	12c	287/2B	–
7	2109/13	Release	HDFC Bank	Krishnamoorthy	12c	287/2B	CLEAR
8	3341/16	Settlement	Krishnamoorthy	Priya	12c	287/2B	–
9	1567/19	Sale	Priya	Arjun	12c	287/2B	–
10	2890/21	Sale	Arjun	Meenakshi Sundaram	12c	287/2B	–
11	445/22	Rectification	(boundary correction)	—	12c	287/2B	–
12	1122/24	Patta Txfr	Revenue Dept	Meenakshi Sundaram	12c	287/2B	–

Documents Reviewed

ENCUMBRANCE CERTIFICATE

EC for Parent Survey 287/2

Period: 1978 – 2024 (46 years)
Issued by: Madurai SRO · 12 entries
Searched under 287/2; all sub-divisions incl. 287/2B captured within the same encumbrance chain

PATTA / CHITTA

Patta No. 4216

Owner: Meenakshi Sundaram K.
Survey: 287/2B · 12 cents
Source: Thiruparankundram Taluk

FMB SKETCH

Field Measurement Book

Survey 287/2B · ~22 × 20 m
Area: ~485 sq.m (~12 cents)
Source: Survey Dept, Madurai

SALE DEED (CURRENT)

Doc #2890/2021

Arjun → Meenakshi Sundaram
Rs. 42,00,000 · 12 cents
Registered: Madurai SRO

GPA DOCUMENT

Doc #441/2002

Balasubramanian → Selvam
General Power of Attorney
Status: Legally vulnerable

BANK RELEASE DEEDS

Indian Bank + HDFC

Indian Bank #887/1997 (error: 287/2)
HDFC #2109/2013 (clean)
Both mortgages released

Disclaimer: This is not legal advice. This report is based on publicly available government records and reflects their state at the time of investigation. No physical site inspection was conducted. Government record errors are beyond our control. Present this report to a qualified legal advisor before any transaction decision. · **HataD** · Hypse Aero Pvt Ltd · Coimbatore · 15 Mar 2026